

3RD SCH.
—cont.

Session and Chapter.	Short Title.	Extent of Repeal.
10&11Geo.5. c. 81.	The Administration of Justice Act 1920.	In subsection (1) of section four, the words from "and the grand jury" to the end of the subsection.
12&13Geo.5. c. 11.	The Juries Act 1922	In subsection (1) of section four, the words "on grand juries in the borough and."
12 & 13Geo.5. c. 60.	The Lunacy Act 1922	In subsection (2) of section one, the words "as regards administration and management"
15&16Geo.5. c. 49.	The Supreme Court of Judicature (Consolidation) Act 1925.	In subsection (5) of section seventy-eight, the words "to a grand jury."
15 & 16Geo.5. c. 72.	The Honours (Prevention of Abuses) Act 1925.	Subsection (4) of section one.
15&16Geo.5. c. 86.	The Criminal Justice Act 1925.	Subsection (4) of section thirteen; section nineteen; and in subsection (1) of section thirty-three, the words "to the grand jury."
23&24Geo.5. c. 12.	The Children and Young Persons Act 1933.	Section sixteen.

CHAPTER 37.

An Act to improve and extend the procedure under the Private Legislation Procedure (Scotland) Act, 1899. [28th July 1933.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1. For section one of the Private Legislation Procedure (Scotland) Act, 1899 (hereafter in this Act referred to as the principal Act), the following section shall be substituted :—

"1.—(1) When any public authority or any persons (hereinafter referred to as the petitioners)

Application
for Pro-
visional
Order.
Notices.

62&63 Vict.
c. 47.

desire to obtain Parliamentary powers in regard to any matter affecting public or private interests in Scotland for which they are entitled to apply to Parliament by a petition for leave to bring in a Private Bill, they shall proceed by presenting a petition to the Secretary for Scotland, praying him to issue a Provisional Order in accordance with the terms of a draft Order submitted to him, or with such modifications as shall be necessary.

(2) A printed copy of the draft Order shall, at such time as shall be prescribed, be deposited in the office of the Clerk of the Parliaments and in the Private Bill Office of the House of Commons, and also at the office of the Treasury and of such other public departments as shall be prescribed.

(3) The petitioners shall make such deposits and give such notice by public advertisement, and, where land is proposed to be taken, by such service on owners, lessees and occupiers, as shall be prescribed as sufficient for procedure by way of Provisional Order under this Act.

(4) If a representation is made to the Secretary for Scotland by any public authority or persons that they desire to obtain Parliamentary powers to be operative in Scotland and elsewhere, and that it is expedient that such powers should be conferred by one enactment by reason of the fact that it is necessary to provide for the uniform regulation of the affairs of an undertaking or institution carried on or operating in Scotland and elsewhere, the Secretary for Scotland and the Chairman of Committees of the House of Lords and the Chairman of Ways and Means in the House of Commons (in this Act referred to as the Chairmen) shall take such representation into their consideration, and, if they shall be of opinion that the said powers or some of them would more properly be obtained by the promotion of a Private Bill than by the promotion of a Private Bill and of a Provisional Order, they shall cause a notice of a decision to that effect to be published in the London and the Edinburgh Gazettes and shall lay a report of such decision before both

Houses of Parliament, and, on the publication of such notice as aforesaid, subsection (1) of this section shall not apply as regards any powers to which the said decision relates."

Report by
Chairmen
that proce-
dure should
not be by
Provisional
Order.

2. For section two of the principal Act the following section shall be substituted :—

"2.—(1) The Chairmen shall, if the two Houses of Parliament think fit so to order, determine all matters of practice and procedure which will enable them to take into consideration the draft Order, and to report thereon to the Secretary for Scotland : Provided that with a view to such report the Secretary for Scotland shall forthwith inform the Chairmen of any dissents from or objections to any of the provisions of the Order which have been stated in the prescribed manner and within the prescribed time.

(2) If it appears from the report of the Chairmen that in their opinion the provisions or some of the provisions of the draft Order relate to matters outside Scotland to such an extent, or raise questions of public policy of such novelty and importance, that they ought to be dealt with by Private Bill and not by Provisional Order, the Secretary for Scotland shall, without further inquiry, refuse to issue the Provisional Order, so far as the same is objected to by the Chairmen.

(3) A copy of every report by the Chairmen in pursuance of this section shall as soon as possible be laid before both Houses of Parliament.

(4) If the Secretary for Scotland shall refuse to issue the Provisional Order or part thereof in pursuance of the provisions of this section, the notices published and served and the deposits made for the proposed Provisional Order shall, subject to Standing Orders, be held to have been published and served and made for a Private Bill applying for similar powers : Provided that the petitioners shall, by notice served in the prescribed manner and within the prescribed time, inform all opponents of their intention to proceed by way of Private Bill, and, subject to Standing Orders, the petition for the

Provisional Order shall be deemed and taken to be the petition for leave to bring in a Private Bill, and the petitioners shall also give such additional notices (if any) as shall be required by Standing Orders."

3. In subsection (1) of section three of the principal Act the words "or either of them" shall be omitted.

Amendment
of s. 3 of
principal Act.

4. In section six of the principal Act the following subsection shall be added after subsection (5) :—

Amendment
of s. 6 of
principal
Act.
28 & 29 Vict.
c. 27.

"(6) The provisions of sections one, two, three, five, six and seven, of the Parliamentary Costs Act, 1865, shall, so far as applicable, apply to costs incurred in or in relation to any inquiry by the Commissioners in like manner as they apply to costs in proceedings before a committee on a Private Bill, subject to the following and any other necessary modifications :—

- (a) The costs, which shall be according to such scale as may be prescribed by the Secretary for Scotland, shall be taxed by the Auditor of the Court of Session in lieu of the taxing officer of the House, and for the purpose of such taxation the Auditor shall have power to examine on oath any party to such taxation and any witnesses who may be examined in relation thereto, and to call for the production of any books or writings in the hands of any party to such taxation relating to the matters thereof.
- (b) The Auditor shall be entitled for any such taxation to such fee as may be authorised by General Orders, and shall have power to award the costs of such taxation (including such fee as aforesaid) against either party thereto or in such proportion against either party as he may think fit.
- (c) For any reference to the committee's report to the House there shall be substituted a reference to the Commissioners' report to the Secretary for Scotland."

5. In subsection (3) of section eleven of the principal Act the following words shall be added at the end of the subsection :—"but the making of such a report

Amendment
of s. 11 of
principal
Act.

“ shall not confer any right to a hearing by the
“ Commissioners.”

Amendment
of s. 16 of
principal
Act.

6. Subsection (2) of section sixteen of the principal Act shall cease to have effect: Provided always that nothing contained in the principal Act or in this Act shall affect the right of any person to apply for, or the powers of the Board of Trade or the Minister of Transport or the Electricity Commissioners or any other department to make or confirm, Provisional or other Orders under the provisions of any Act in force at the passing of this Act or the procedure therein specified.

Short title.

7. This Act may be cited as the Private Legislation Procedure (Scotland) Act, 1933, and the principal Act and this Act may be cited together as the Private Legislation Procedure (Scotland) Acts, 1899 and 1933.

CHAPTER 38.

An Act to amend the law relating to appeals
from courts of summary jurisdiction.

[28th July 1933.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Amendment
of 42 & 43
Vict. c. 49.
s. 31.

1. The Summary Jurisdiction Act, 1879, shall have effect as if for section thirty-one of that Act (which relates to procedure on appeal to general or quarter sessions) there were substituted the following section :—

“ Procedure
on appeal to
quarter
sessions.

31.—(1) Subject to the provisions of this section, where a person is authorised by or under any Act, including any local Act, to appeal to a court of general or quarter sessions against a conviction, sentence, order, determination or other decision of a court of summary jurisdiction, the following provisions shall apply :—

(i) the appeal shall be made to a court of quarter sessions having jurisdiction in the